

24STCV03808 24STCV03808

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 24STCV03808 Hearing Date: June 30, 2026 Dept: 529

DENNIS

DEVAUGHT v. TURNING POINT NETWORK, INC.

MOTIONS TO COMPEL FURTHER DISCOVERY

Date of Hearing: June

30, 2026 Trial Date: November

9, 2026

Department: 529 Case No.: 24STCV03808

Moving Party: Plaintiffs

Responding Party: Defendant Turning Point Network, LLC (No
opposition received)

BACKGROUND

On February 14, 2024, plaintiff Dennis Devaughn and others filed a complaint against Defendant Turning Point Network, LLC, and several individuals for breach of their partnership agreement. On March 20, 2024, the other individual partners filed a cross-complaint against plaintiffs for injunctive and declaratory relief.

Ruling

I.

Plaintiffs'

Motion to Compel Further Responses to Plaintiffs' Request for Production (Set One) is GRANTED in part.

II.

Plaintiff's

Motion to Compel Further Responses to Plaintiffs' Requests for Production (Set Two) is GRANTED in part.

III.

Plaintiff's

Motion to Compel Initial Disclosures is GRANTED.

IV.

DISCUSSION

I.

PLAINTIFFS'

MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUESTS FOR PRODUCTION

Plaintiffs

move for further responses to Plaintiffs' First Set of Requests for Production, specifically Nos. 1, 2, 12, 15, 18, 19-21, 25-28. The court has received no opposition. The court rules as follows on this unopposed motion:

Requests Nos. 1 and 2: These requests seek tax returns filed by the corporation. The court finds such returns privileged and not discoverable.

However, the court agrees that any K-1s issued by the corporation should be produced and orders those documents produced within 30 days.

Request No. 12.

The court finds the requested materials relevant and subject to discovery. Defendant is ordered to provide further responses, without objection, and to produce the requested documents within 30 days.

Request No. 15.

The court finds defendant's response confusing. If the company's position is that it has no

responsive documents (e.g., financial statements of any kind), it should state so clearly. Further responses without objection are ordered within 30 days.

Request Nos. 18 and 19. The court finds the documents sought to be relevant or likely to lead to the discovery of admissible evidence and orders further responses without objection, as well as all responsive documents within 30 days.

Request Nos. 20-21.

The court agrees that the profits distributed to the individual defendants are relevant and discoverable.

Defendant is ordered to produce all responsive documents within 30 days without objection.

Request Nos. 25-28.

The court agrees that the governance documents for these entities are relevant and discoverable. Defendant is ordered to produce all responsive documents without objection within 30 days.

Plaintiffs' request for sanctions is denied as the court finds defendants' position to be reasonably justified at least with respect to the tax returns.

II.

PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUEST FOR PRODUCTION (SET 2)

Plaintiffs

move to compel further responses to their Request for Production (Set 2), specifically Requests Nos. 71, 72, 75 and 76.

The court has received no opposition.

The court rules as follows on this unopposed motion:

With respect to Requests Nos. 71 and 72, they appear to seek the same privileged tax returns as were sought in the first set of requests for production. As stated above, the court finds that these documents are privileged, with the exception of any K-1 forms (and attachments thereto) that were issued by the company. Further responses are required, producing the

K-1 forms within 30 days, if any exist.

With respect to Requests Nos. 75 and 76, the court finds the documents sought are relevant and discoverable.

Defendants are ordered to provide further responses without objection, as well as all responsive documents within 30 days.

Plaintiffs' request for sanctions is denied as the court finds defendants' position to be reasonably justified at least with respect to the tax returns.

III.

MOTION TO

COMPEL INITIAL DISCLOSURES PURSUANT TO C.C.P. SECTION 2016.090

Plaintiffs served a timely request for initial disclosures pursuant to C.C.P. Section 2016.090. Provided that plaintiffs themselves complied with the section's mutual disclosure requirements, plaintiffs are entitled to verified responses from defendants. If those have not been provided, defendants are ordered to provide complete verified responses, and all responsive documents, as required by the code, within 30 days. Further, the court orders a sanction of \$1000 against defense counsel and the entity defendant, jointly and severally, payable within 30 days, for failure to provide the required disclosures without substantial justification.